

**DEPARTMENT SEVEN  
JUDGE TIM P. KAM  
707-207-7307  
TENTATIVE RULINGS SCHEDULED FOR  
TUESDAY, SEPTEMBER 22, 2026**

*The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.*

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

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**CAPITAL ONE N.A. vs. DENNIS C. REGRESADO  
Case No. CL25-04169**

Motion by Plaintiff to Set Aside Dismissal and Enter Judgment

**TENTATIVE RULING**

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. See, e.g., applications for writs of attachment [C.C.P. §482.070(d)], and applications for writs of possession [C.C.P. §512.030(b)].

Defendant filed no responsive pleading in this action.

Plaintiff's motion is denied without prejudice. Should Plaintiff seek to refile their motion, Plaintiff is directed to effect service of the motion papers in the same manner as required for service of summons and complaint.

Plaintiff is also reminded that costs must be claimed post-judgment, per CRC 3.1700.

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**MATTHEW NITTINGER; ET AL. vs. DANIEL WAYNE SAUVAGEAU; ET AL.  
Case No. CU25-00844**

Motion by Plaintiff MATTHEW NITTINGER to Compel Defendant DANIEL WAYNE SAUVAGEAU for Compliance with Production of Documents in Response to Requests

for Production of Documents, Set One; Further Responses to Form Interrogatories—Construction Litigation; and for Monetary Sanctions

### TENTATIVE RULING

With the recent service of supplemental responses by Defendant DANIEL WAYNE SAUVAGEAU (“SAUVAGEAU”) to the four form interrogatories at issue in this motion, this motion is now moot as to those interrogatories (except as to monetary sanctions, addressed below).

Although SAUVAGEAU has recently produced thousands of pages of documents in response to the requests for production, his counsel recently made an admission that there may be more responsive documents not yet produced.

As I explained, it is my intention to produce the entirety of my clients jobfile. I have a concern that in the transmittal process, some early correspondence was inadvertently dropped from the materials Bates numbered and produced. I promised to look further and schedule a Zoom with my client in an effort to make sure that all of the correspondence is located and produced. I will try to have that accomplished by the end of next week.

SAUVAGEAU’s counsel never did advise as to whether he was able to have a Zoom meeting with SAUVAGEAU, and/or obtained any more documents.

In addition, in his supplemental declaration in support of the reply, Plaintiffs’ counsel noted that one of the document requests, No. 17, asked for all communication between SAUVAGEAU and all subcontractors who performed work on the project from January 31, 2022 to present. Plaintiffs’ counsel further claimed that no direct communications had been produced for 20 contractors, subcontractors and materialmen who performed work on the project. As to No. 41, asking for production of all general and professional liability policies, Plaintiffs’ counsel claims that none have been produced.

A party on which requests for production have been propounded has a duty to make a “diligent search and a reasonable inquiry” in an effort to comply, and if an inability to produce is claimed, “specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party”, and to “set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” C.C.P. §2031.230.

The court therefore compels further production and/or further verified responses to the requests for production, sufficient to confirm that all responsive documents within SAUVAGEAU’s possession, custody or control have been produced, or, for any such documents no longer within SAUVAGEAU’s possession, custody or control, to meet the requirements of C.C.P. §2031.230.

The court compels this further production and/or further verified responses to the requests for production be completed and served within 30 days of the service of this order.

As to the issue of monetary sanctions:

Both C.C.P. §2030.300(d) [interrogatories] and §2030.320(b) [requests for production] mandate sanctions against the losing party on a motion to compel further responses/compliance, unless the court finds that this party acted with substantial justification or that other circumstances weigh against the imposition of the sanctions.

The court finds that SAUVAGEAU and his counsel have not provided a reasonable excuse for the considerable delay that has already occurred in providing the responses and production at issue in this motion, and thus finds that joint and several sanctions against both are justified.

The court also finds that the amount of sanctions sought by Plaintiffs' counsel exceeds the amount the court finds reasonable, particularly regarding the amount of time claimed to have been spent on the motion papers and the time estimated to be incurred thereafter. It therefore imposes sanctions in the total amount of \$5400.00 (12 hours x 450.00), jointly and severally against DANIEL WAYNE SAUVAGEAU and his counsel Mark J. Mulkerin of the law firm Burke, Williams & Sorensen, LLP, payable to Plaintiff's counsel within 30 days of the service of this order.

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**MARK LEMLEY vs. DARABARA SINGH; ET AL.**  
**Case No. CU25-09863**

Application for Determination of Good Faith Settlement

TENTATIVE RULING

**THE PARTIES ARE TO APPEAR.**

At the hearing, the Court's tentative ruling is to grant the unopposed application for good faith settlement.

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**STEPHANIE NELSON vs. FORD MOTOR COMPANY**  
**Case No. CU26-02728**

Demurrer and Motion to Strike

TENTATIVE RULING